FUTURES MATTER EDUCATION

Futures Matter - Northwood, 122 Emily Street, Highgate, Birmingham, B12 0XJ

Suspension and Exclusion Policy

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1.0 AIMS

1.1 Aims

Futures Matter - Northwood is committed to a fair and lawful approach to suspension and permanent exclusion, so that every child receives an education in a safe and caring environment. Our pupils have social, emotional and mental health needs, autism and other complex needs, and many have experienced trauma. For these pupils, a suspension or exclusion can be especially damaging, so we use them only as a last resort and we always plan for the pupil's return and reintegration.

Our aims are to:

- make sure the process is applied fairly and consistently
- help the Proprietor, the School Governance Board, staff, parents, carers and pupils understand the process
- keep pupils safe and help them to be happy in school
- prevent pupils from becoming NEET (not in education, employment or training)
- make sure every suspension and permanent exclusion is lawful
- welcome every pupil back with a reintegration meeting and a plan to support them to return to school and to learning

1.2 A Note on Off-Rolling

'Off-rolling' is a form of gaming. It happens when a school decides, in its own interests and not the pupil's, to:

- remove a pupil from the admission register without a formal permanent exclusion
- encourage a parent or carer to remove their child from the school
- keep a pupil on the register but not allow them to attend normally, without a formal permanent exclusion or suspension
- move a pupil to alternative provision when this is not in their best interests
- send a pupil home without formally recording a suspension, even if the parent or carer agrees
- place a pupil on a part-time timetable for behavioural reasons
- remove a pupil from the roll without following due process

We will not suspend or permanently exclude a pupil unlawfully, by telling or forcing them to leave, encouraging their parents or carers to remove them, or not allowing them to attend without following this policy and recording it formally.

Any suspension or exclusion is made on disciplinary grounds. It is never made:

- because a pupil has special educational needs or a disability (SEND) that we feel unable to support
- because of a pupil's poor academic performance
- because the pupil has not met a condition, such as attending a reintegration meeting

If a pupil's needs are not being met, we ask the placing local authority for an early review of the pupil's education, health and care (EHC) plan and placement. We do not use exclusion for this purpose.

1.3 Reintegration

Every suspension, separation from site for safeguarding reasons, and cancelled suspension or exclusion ends with a reintegration meeting and a reintegration plan, so that the pupil can return to school and learning successfully. This is set out in section 8.

2.0 LEGISLATION AND GUIDANCE

The School Discipline (Pupil Exclusions and Reviews) (England) Regulations 2012 and the DfE statutory guidance on suspension and permanent exclusion apply directly to maintained schools, academies and pupil referral units. They do not apply directly to an independent school such as ours. We follow them as good practice, adapted to our own governance, and we apply the law that does apply to us:

- the DfE guidance, Suspension and permanent exclusion from maintained schools, academies and pupil referral units in England, including pupil movement (use from 26 July 2026)
- the School Discipline (Pupil Exclusions and Reviews) (England) Regulations 2012, as good practice
- the Equality Act 2010, including the rules on discrimination in exclusion by schools
- the Children and Families Act 2014 and the SEND Code of Practice
- the Education (Independent School Standards) Regulations 2014, which require a behaviour policy that sets out our sanctions
- the Education (Pupil Registration) (England) Regulations 2006
- the terms of the placement agreement between the school, parents or carers and the placing local authority
- Keeping Children Safe in Education (KCSIE) 2026

3.0 DEFINITIONS

Term	Meaning
Suspension	When a pupil is removed from the school for a fixed period. This was previously called a 'fixed-term exclusion'.
Permanent exclusion	When a pupil is removed from the school permanently and taken off the admission register.
Separation from site for safeguarding	When the Head Teacher temporarily stops a pupil attending the school site for safeguarding reasons. This is not an exclusion on disciplinary grounds.
Cancelled exclusion	A suspension or permanent exclusion that is cancelled before the panel has met to consider reinstatement.
Parent or carer	Any person with parental responsibility, and any person who has care of the child.
Placing local authority	The local authority that maintains the pupil's EHC plan and placed the pupil at our school.

Term	Meaning
Reintegration meeting	A meeting with the pupil, their parents or carers and school staff, before or on the pupil's return to school, to explain the reintegration plan and welcome them back.
Panel	The review panel described in section 9.

4.0 ROLES AND RESPONSIBILITIES

Who	Responsibilities
The Head Teacher	Only the Head Teacher, or the person acting as Head Teacher, can suspend or permanently exclude a pupil on disciplinary grounds. Decides whether to suspend or exclude, following section 5. Informs parents, carers, the Proprietor, the School Governance Board, the placing local authority, any social worker and Virtual School Head as set out in section 6. Makes sure work is set during a suspension and that a reintegration meeting and plan are in place (sections 7 and 8). Keeps records and monitors data.
The Designated Safeguarding Lead (DSL)	Leads decisions to separate a pupil from the site for safeguarding reasons, working with children's social care and the police where appropriate. Makes sure safeguarding is considered in every decision, and in the reintegration plan.
The Proprietor and the School Governance Board	Receive reports of suspensions and exclusions. Provide the panel that reviews decisions (section 9). Review, challenge and evaluate data on suspension and exclusion, and make sure these measures are only used as a last resort.
The panel	Considers whether a decision to suspend or permanently exclude was lawful, reasonable and fair, and decides whether to uphold it or reinstate the pupil (section 9).
The clerk	The clerk to the School Governance Board, or another person appointed by the Proprietor. Arranges panel meetings, takes minutes and sends the written decision.
The placing local authority	Keeps responsibility for the pupil's EHC plan and for arranging suitable full-time education for a permanently excluded pupil, no later than the sixth school day (from the first day for a looked-after child or a child with a social worker).

5.0 DECIDING WHETHER TO SUSPEND OR EXCLUDE

5.1 Suspension

The Head Teacher can decide to suspend a pupil for behaviour inside or outside school. We use suspension only:

- in line with our Behaviour, Rewards and Sanctions Policy
- to give a clear signal of what is unacceptable behaviour

- to show a pupil that their current behaviour is putting them at risk of permanent exclusion

Suspension is a decision about safeguarding as well as discipline, so the Head Teacher considers the pupil's welfare as well as the behaviour. If suspensions are becoming regular, the Head Teacher considers whether suspension is effective and whether other strategies are needed to address the behaviour. A pupil will not be suspended for more than 45 school days in a school year.

5.2 Permanent Exclusion

We use permanent exclusion only as a last resort, and only:

- in response to serious or persistent breaches of our Behaviour, Rewards and Sanctions Policy, and
- if allowing the pupil to remain in school would seriously harm the education or welfare of the pupil or of others, including staff and other pupils

5.3 Before Deciding

Before deciding whether to suspend or permanently exclude, the Head Teacher will:

- consider all the relevant facts and evidence on the balance of probabilities, including whether the incident was provoked
- allow the pupil to give their version of events, in light of their age and understanding, unless it would not be appropriate. The pupil can be helped to express their views by an advocate, such as a parent, carer or social worker
- consider whether the pupil has special educational needs, and whether the behaviour is linked to those needs, their trauma history or any unmet need
- consider whether the pupil is especially vulnerable, for example if they have a social worker or are looked after or previously looked after
- consider whether all alternatives have been explored, including the sanctions and support set out in the Behaviour, Rewards and Sanctions Policy, a review of the pupil's plan, support from other professionals, and early review of the EHC plan with the placing local authority

The Head Teacher will not make a decision until they have heard from the pupil, and will tell the pupil how their views were taken into account.

5.4 Pupils with SEND, an EHC Plan or a Social Worker

Where there are concerns about behaviour, or a risk of suspension or exclusion, for a pupil with an EHC plan, we contact the placing local authority at an early stage and consider asking for an early annual review before any decision. With others, including the local authority, we consider what extra support or alternative placement may be needed, and assess whether the provision suits the pupil's needs.

If a pupil with a social worker is at risk of suspension or exclusion, we tell the social worker as early as possible. If a pupil is looked after, we tell the Virtual School Head as early as possible. This is so that we can work together to understand what may be affecting the behaviour and what more support can be put in place. For a looked-after child we also consider how well the Personal Education Plan (PEP) is working, whether an interim review is needed, and how Pupil Premium Plus is being used.

If there is a safeguarding investigation, including a criminal investigation, that may lead to a permanent exclusion, decisions are made alongside our safeguarding duties and our duty to provide an education.

5.5 Separating a Pupil from the Site for Safeguarding Reasons

In exceptional circumstances, the Head Teacher may temporarily stop a pupil attending the site for safeguarding reasons. This is not an exclusion on disciplinary grounds. We only do this when it is necessary to separate pupils to keep them safe and there is no reasonable alternative that would let everyone stay on site.

Decisions are made case by case, led by the DSL, with children's social care and the police where appropriate. We tell parents and carers without delay and give the reasons, tell the Proprietor and the School Governance Board without delay, set work for the pupil or work with the placing local authority to arrange suitable education, and support the pupil's reintegration (section 8) as soon as it is safe.

6.0 INFORMING PEOPLE

6.1 Parents and Carers

If a pupil is at risk of suspension or exclusion, the Head Teacher tells the parents or carers as early as possible, so that we can work together to understand what may be affecting the pupil's behaviour and what more support can help.

If the Head Teacher decides to suspend or permanently exclude, the parents or carers are told by telephone or in person, without delay, the length of the suspension or that the exclusion is permanent, and the reasons. They are also given the following in writing, without delay:

- the reasons for the suspension or permanent exclusion
- the length of the suspension, or that the exclusion is permanent
- their right to make representations to the School Governance Board, and how to do so
- that a panel will meet to consider the decision where section 9 requires, and that they have the right to attend, be represented (at their own expense) and bring a friend
- that they can ask for the meeting to be held remotely, and how and to whom to make that request
- who to contact at the school, and that a reintegration meeting will be arranged for the pupil's return

We also ask parents and carers to make sure the pupil is supervised during school hours for the first five school days of the suspension or exclusion, and we tell them this by the end of the first day. If alternative provision is arranged, the written notice includes the start date, the address, the person the pupil reports to, the length of the placement, the reasons for and aims of it, and the start and finish times. If we do not have all of this on the first day, we give it later, and no later than 48 hours before the provision starts.

6.2 The Proprietor and the School Governance Board

The Head Teacher tells the Proprietor and the Chair of the School Governance Board without delay of:

- any permanent exclusion, including when a suspension is followed by a decision to permanently exclude
- any suspension or exclusion that would mean the pupil is out of school for more than 5 school days (or more than 10 lunchtimes) in a term
- any suspension or exclusion that would mean the pupil misses a public exam or national curriculum test
- any suspension or exclusion that is cancelled, with the reason

6.3 The Placing Local Authority

The Head Teacher tells the placing local authority of every suspension and permanent exclusion without delay, whatever the length of the suspension. The notice gives the reasons, and the length of the suspension or that the exclusion is permanent. For a permanent exclusion, if the pupil lives in a different local authority area, we also tell their home authority. We also tell the placing local authority without delay of any cancelled exclusion, with the reason.

6.4 Social Workers and the Virtual School Head

If the Head Teacher decides to suspend or permanently exclude a pupil with a social worker, or a looked-after child, they tell the social worker or Virtual School Head without delay that the decision has been made, the reasons, the length, whether it affects a public exam or test, and, if relevant, that it has been cancelled and why. The social worker or Virtual School Head is invited to any panel meeting, to advise how the pupil's background and circumstances may have affected what happened, and to help make sure safeguarding needs and welfare are considered.

6.5 Cancelling a Suspension or Exclusion

The Head Teacher can cancel a suspension or permanent exclusion that has started, or has not yet started, but only before the panel has reviewed it. If it is cancelled:

- parents and carers, the Proprietor, the School Governance Board and the placing local authority are told without delay, with the reason, as are any social worker and Virtual School Head
- the panel no longer needs to meet to consider reinstatement
- parents and carers are offered a meeting with the Head Teacher to discuss it, arranged without delay
- the pupil is allowed back in school without delay, with a reintegration meeting and plan (section 8)

Days out of school before a cancellation count towards the limit of 45 school days in a school year. A permanent exclusion cannot be cancelled if the pupil has already been excluded for more than 45 school days in the school year.

7.0 EDUCATION DURING A SUSPENSION OR EXCLUSION

For the first 5 school days of a suspension or exclusion, the Head Teacher makes sure that achievable and accessible work is set and marked, unless the pupil is attending alternative provision. If the pupil has SEND, reasonable adjustments are made, for example in the format of the work and how it is explained.

If the pupil is looked after or has a social worker, we work with the placing local authority to arrange alternative provision from the first day. If this is not possible, we take reasonable steps to set and mark work.

For a suspension of more than 5 school days, we arrange suitable full-time education for the pupil, starting no later than the sixth day of the suspension, working with the placing local authority. We do not need to do this for a pupil in their final year of compulsory education who has no more public exams to sit.

For a permanent exclusion, the placing local authority arranges suitable full-time education to start no later than the sixth school day after the first day of the exclusion, and from the first day for a pupil who is looked after or has a social worker. We work with the authority and share the information it needs.

8.0 RETURNING TO SCHOOL AND REINTEGRATION

8.1 Reintegration Strategy

After every suspension, separation from site for safeguarding reasons, and cancelled suspension or exclusion, we put a reintegration plan in place to help the pupil return successfully to school life and to full-time learning. The plan is written with the pupil and their parents or carers, and with the placing local authority, the social worker and the Virtual School Head where relevant. Where needed, we work with other organisations to find out whether the pupil has unmet special educational or health needs.

As part of the plan, we may:

- keep in regular contact with the pupil and their family during the suspension, and welcome the pupil back
- arrange daily contact in school with a key worker or other trusted adult
- arrange mentoring by a trusted adult or a local mentoring organisation
- review the pupil's Positive Behaviour Support Plan, risk assessments and any adjustments
- agree how the pupil will be supported at the times and in the places where behaviour was hardest
- hold regular reviews with the pupil and their parents or carers to celebrate progress and deal with any concerns early
- tell the pupil, parents, carers and relevant staff about other support that is available

We do not use part-time timetables to manage behaviour. If one is ever needed for another reason, it is for the minimum time necessary, agreed with the parents or carers and the placing local authority. The plan is reviewed and changed as needed, with the pupil, parents and carers and others involved.

8.2 Reintegration Meetings

We hold a reintegration meeting for every pupil who returns after a suspension, a separation from site for safeguarding reasons, or a cancelled suspension or exclusion. The meeting takes place before the pupil returns or on the day they return, and is arranged by the Head Teacher.

In the meeting we:

- explain the reintegration plan to the pupil in language they understand
- tell the pupil that they have a fresh start and are a valued member of the school community
- listen to the pupil's views, and those of their parents or carers, about what went wrong and what would help
- agree the support, the key adult and the first review date, and record these on the form in Appendix 1

The pupil, their parents or carers, the Head Teacher or a member of the senior team, the pupil's key worker and any other relevant staff are invited. A social worker or Virtual School Head is invited where relevant. The meeting can go ahead if parents or carers cannot or do not attend, and we will offer another time or a telephone or video call. We expect every returning pupil and their parents or carers to attend, but a pupil who does not attend is not prevented from returning to the classroom.

8.3 Reviewing the Plan

The key worker and the Head Teacher review the plan with the pupil and their parents or carers after the first week, then at agreed intervals. If behaviour is a concern again, we review the plan and the support first, and we consider an early annual review of the EHC plan with the placing local authority.

9.0 REVIEWING A DECISION

9.1 When a Panel Meets

A panel considers whether to reinstate a suspended or permanently excluded pupil, and decides within 15 school days of receiving notice of the suspension or exclusion, if:

- the exclusion is permanent
- a suspension would bring the pupil's total days out of school to more than 15 in a term
- the suspension or exclusion would mean the pupil misses a public exam or national curriculum test

If a pupil is suspended for more than 5 but not more than 15 school days in a term and the parents or carers make representations, the panel considers and decides on reinstatement within 50 school days of receiving notice. If no representations are made, the panel does not need to meet.

For a suspension of 5 school days or fewer in a term, the Chair of the School Governance Board considers any representations from parents or carers. A meeting is not required and the Chair cannot direct the Head Teacher to reinstate the pupil.

Where a suspension or exclusion would mean the pupil misses a public exam or test, the panel decides, as far as is reasonably practicable, before the date of the exam or test. If this is not practicable, the Chair of the School Governance Board, or the Vice-Chair if necessary, may decide.

9.2 The Panel

The panel has at least 3 members who were not involved in the decision. At least 1 member must be independent of the management and running of the school, and so cannot be a member of staff, the Proprietor, a director or a member of the School Governance Board.

The Head Teacher does not sit on the panel. Panel members must not have any connection with the pupil, the family or the incident that might reasonably raise doubts about their impartiality. The clerk attends the meeting and the decision.

9.3 The Meeting

The following are invited to the meeting and can make representations or share information:

- the parents or carers (and, if they ask, a representative or friend, and where appropriate more than one, within reasonable limits set by the panel)
- the pupil, if it is appropriate for their age and understanding (and, if they ask, a representative or friend)
- the Head Teacher
- the pupil's social worker, if they have one
- the Virtual School Head, if the pupil is looked after
- a representative of the placing local authority

The meeting can be held remotely at the request of the parents or carers (see section 11). The panel aims to hold it within the time limits above and at a time that suits everyone, but its decision is not invalid just because it was made late.

9.4 Making the Decision

The panel can decide to uphold the decision, or to reinstate the pupil immediately or on a particular date. In reaching its decision it considers:

- whether the decision to suspend or permanently exclude was lawful, reasonable and fair
- whether the Head Teacher followed this policy and their legal duties, including the Equality Act 2010
- the welfare and safeguarding of the pupil and of other pupils
- any evidence presented, deciding whether a fact is true on the balance of probabilities

The clerk takes minutes and keeps a record of the evidence. The outcome is recorded on the pupil's educational record, with copies of the papers.

9.5 Telling People the Decision

The panel tells the following in writing, without delay, of its decision and the reasons: the parents or carers, the Head Teacher, the social worker (if any), the Virtual School Head (if the pupil is looked after), the placing local authority, and the pupil's home authority if different. Where a permanent exclusion is upheld, the notice also explains what the parents or carers can do next (section 9.6).

9.6 If Parents or Carers Remain Unhappy

We do not have a statutory independent review panel, because that applies only to maintained schools and academies. Parents and carers can still:

- make a complaint under our Complaints Policy about how the school followed this policy

- ask the placing local authority to hold an early annual review of the EHC plan, or to look again at the placement. They can use the SEND Tribunal route that applies to EHC plans
- if they believe a pupil has been permanently excluded because of unlawful discrimination, make a claim under the Equality Act 2010 to the First-tier Tribunal (Special Educational Needs and Disability) for disability discrimination, or to the county court for other kinds of discrimination. A claim should be made within 6 months of the discrimination

10.0 SCHOOL REGISTERS

A pupil's name is removed from the admission register only after the panel process has finished. This means that 15 school days have passed since the parents or carers were told that the permanent exclusion was upheld and they have not asked for it to be looked at again through any route open to them in section 9.6, or they have told us in writing that they will not. If an application or complaint is still being considered, we wait until it has finished.

While the pupil's name stays on the register, attendance is recorded properly. Code B (education off-site) is used where alternative provision has been arranged and the pupil attends it, code D (dual registration) is used if the pupil attends another school at the same time, and code E (absent) is used where the pupil is excluded and is not attending alternative provision.

When a pupil's name is removed because of a permanent exclusion, we make a return to the placing local authority, giving the pupil's full name and address, the name and address of the parents or carers they normally live with, an emergency telephone number, the grounds for removal (permanent exclusion), and details of any new school or new address that the parents have told us about. We make this return as soon as the grounds for removal are met, and no later than the removal.

11.0 REMOTE ACCESS TO MEETINGS

Parents and carers can ask for a panel meeting to be held remotely. If they do not say what they prefer, the meeting is held in person. We can refuse a request if, after a risk assessment, we think a remote meeting could not be held fairly, openly and with full participation for safeguarding reasons. If it is not reasonably practicable for a meeting to be held in person because of unforeseen circumstances, it is held remotely.

Remote meetings follow the same rules as in-person meetings. Before agreeing, we make sure that everyone can hear, speak, see and be seen, that everyone can take a full part, and that the meeting can be held fairly and openly. Social workers and the Virtual School Head can always join remotely if they meet these conditions. If a technical problem cannot reasonably be fixed and stops people taking part effectively or stops the meeting being fair, the meeting is moved to an in-person meeting without delay.

12.0 MONITORING ARRANGEMENTS

The Head Teacher collects and analyses data each term on attendance, suspensions, permanent exclusions, separations from site, reintegration meetings held, and use of alternative provision. The data is looked at across the school, by age group, by time of day, week and term, and by protected characteristic, SEND status and looked-after status. The Head Teacher reports to the Proprietor and the School Governance Board, who review,

challenge and evaluate the data. They look at how well the Behaviour, Rewards and Sanctions Policy is working, repeat suspensions, the support given to pupils at risk of suspension, timing and patterns, whether any group is suspended more than others, and whether the reintegration plans are working.

We use this analysis to check that we are meeting our duties under the Equality Act 2010. If we find patterns or differences between groups of pupils, we review our policies to address them. On request, we give information about suspensions and exclusions in the last 12 months to the Secretary of State, the placing local authority and our inspectors.

This policy is reviewed every year by the Head Teacher, and is approved by the Proprietor and the School Governance Board. It is also reviewed when the law or DfE guidance changes.

13.0 LEGISLATION, GUIDANCE AND REFERENCES

- Suspension and permanent exclusion from maintained schools, academies and pupil referral units in England, including pupil movement, DfE (use from 26 July 2026)
- The School Discipline (Pupil Exclusions and Reviews) (England) Regulations 2012
- The Education (Independent School Standards) Regulations 2014
- The Education (Pupil Registration) (England) Regulations 2006
- The Equality Act 2010
- The Children and Families Act 2014 and the SEND Code of Practice
- Keeping Children Safe in Education (KCSIE) 2026
- Arranging alternative provision: a guide for local authorities and schools, DfE
- Model policy: suspension and permanent exclusion, The Key, June 2026

14.0 RELATED POLICIES

- Behaviour, Rewards and Sanctions Policy
- Safeguarding and Child Protection Policy
- Special Educational Needs Policy
- Anti-Bullying Policy
- Restrictive Interventions Policy
- Complaints Policy
- Admissions Policy

15.0 APPENDICES

Appendix 1: Reintegration Meeting Record

Appendix 2: Suspension and Exclusion Record

APPENDIX 1: REINTEGRATION MEETING RECORD

Complete this form at the reintegration meeting and keep it on the pupil's file. Give a copy to the parents or carers and the pupil.

REINTEGRATION MEETING RECORD - to be completed by the school	
Pupil's name and date of the meeting:	
Reason for the return (suspension, separation from site for safeguarding, cancelled suspension or exclusion) and dates:	
Who attended (pupil, parents or carers, school staff, social worker, Virtual School Head, local authority):	
The pupil's views on what happened and what would help:	
The views of the parents or carers:	
Message given to the pupil: a fresh start, and a valued member of the school community:	
Key worker or trusted adult, and daily contact arranged:	
Changes to the Positive Behaviour Support Plan, risk assessments, timetable or adjustments:	
Other support agreed (mentoring, outside agencies, family support):	
Unmet needs identified, and who will follow them up:	
Date of the first review, and later review dates:	
Signed (Head Teacher or senior member of staff) and dated:	

APPENDIX 2: SUSPENSION AND EXCLUSION RECORD

The Head Teacher completes this record for every suspension, permanent exclusion and separation from site for safeguarding reasons, and keeps it with the pupil's file.

SUSPENSION AND EXCLUSION RECORD - to be completed by the Head Teacher	
Pupil's name, date of birth, SEND status and EHC plan, social worker, looked-after status:	
Type of decision (suspension, permanent exclusion, separation from site) and dates:	
Reasons, and the evidence considered:	
The pupil's views, and how they were taken into account:	
Alternatives considered, including early review of the EHC plan:	
Parents or carers told (by telephone or in person, date and time) and letter sent (date):	
Proprietor and Chair of the School Governance Board told (date):	
Placing local authority and home authority told (date):	
Social worker or Virtual School Head told (date):	
Work set, or alternative provision arranged, from (date):	
Panel meeting required? Date, panel members (and the independent member) and outcome:	
Reintegration meeting held (date) and plan in place:	
Attendance codes applied, and return to the local authority made (date):	
Signed and dated:	